

2005 SCC OnLine All 576 : (2005) 53 ACC 104 (1) : (2005) 34
AIC 450 (All)

In the High Court of Allahabad
(BEFORE RAVINDRA SINGH, J.)

Rishipal ... Applicant (In Jail);

Versus

State of U.P. ... Opposite Party.

Criminal Misc. Bail Application No. 10057 of 2005

Decided on July 27, 2005

The Judgment of the court was delivered by

RAVINDRA SINGH, J.:— Heard Sri G.C. Saxena learned Counsel for the applicant learned A.G.A.

2. From the perusal of the record it reveals that in the present case the alleged occurrence has taken place on 29.8.2004 at about 7.00 P.M. Its FIR was registered on 2.9.2004 at 10.30 P.M. by one Rakesh the father of the prosecutrix in case crime No. 181 of 2004, under section 376 IPC, P.S. Saroorpur, District Meerut. The allegation against the applicant is that the applicant committed rape with Kumari Tanu aged about two years. The medical examination report of the prosecutrix shows that she was medically examined on 2.9.2004 at Women Hospital, Meerut and there was a injury i.e. superficial tear of $\frac{1}{2}$ cm. at 6 O'clock position above anus, laberal margins red. Bleeds on touch. It is contended by the learned Counsel for the applicant that in this case the FIR is delayed by three days and the prosecution story is highly improbable because it was not possible to commit the rape with a girl of two years and the allegations of rape is also false because the hymen of the prosecutrix was intact and no spermatozoa was found in vaginal smear. It is further contended that the medical examination report was conducted after four days of the alleged occurrence.

3. The contention of the learned Counsel for the applicant is having no substance at this stage for granting bail to the applicant, because in such cases generally the FIRs are not promptly lodged due to some social and other prevailing circumstances.

4. In view of the facts and circumstances of the case and submissions made by the learned Counsel for the applicant, learned A.G.A. and learned Counsel for the complainant without expressing any opinion on the merits of the case, I find that it is not a fit case for bail at this stage.

5. Accordingly, the bail application is rejected at this stage.

Application Rejected.

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